

POST INDEPENDENCE DEVELOPMENTS

EMERGENCY IN INDIA MODULE-9



INDIA IN 1971



- In 1971, after the elections, the Congress (R) became the Congress (I) for Indira. This eventually became the real Congress.
- The situation in Kashmir had also changed. Indira Gandhi's victory in the 1971 war was making radicals to have a settlement with the government. PM Gandhi gave a strong message to the radicals.

MOVEMENTS ACROSS COUNTRY



- 1** In Gujarat, the Congress government was known for his corruption.
- 2** In 1974, the students led a movement called Nav Nirman, the Movement for Regeneration, and demanded the dismissal of the state government.
- 3** Motivated by these protests, Bihar launched a struggle against their own state for misgovernance. Bihar was witnessing political instability because of defections. The Congress government had become corrupt.

MOVEMENTS ACROSS COUNTRY



- 1 The CPI formed a front in 1973 and organized mass demonstrations in Bihar.
- 2 The Akhil Bhartiya Vidyarthi Parishad (ABVP), the student Union linked to Jana Sangh, along with other non-communist parties formed a united front called Chatra Sangharsh Samiti (CSS).
- 3 This organization grew strong in the state. The CSS marched on to the state assembly in Patna.
- 4 They set fire to government buildings, Food Corporation of India and newspaper offices.

JAYAPRAKASH NARAYAN



1 These students asked Jayaprakash Narayan to lead the movement.

2 JP Narayan had worked for reconciliation in Nagaland and Kashmir and supported the cause of the Naxalites. He did not support Indira Gandhi in her conduct in the presidential elections and the suppression of judges of Supreme Court.

3 Jayaprakash Narayan agreed to lead the CSS movements if it remained non-violent and did not restrict to the state of Bihar.

4 The movement transformed under his leadership which came to be known as the 'JP movement'. He asked students to boycott classes, to leave their studies for a year and work at raising the consciousness of the people

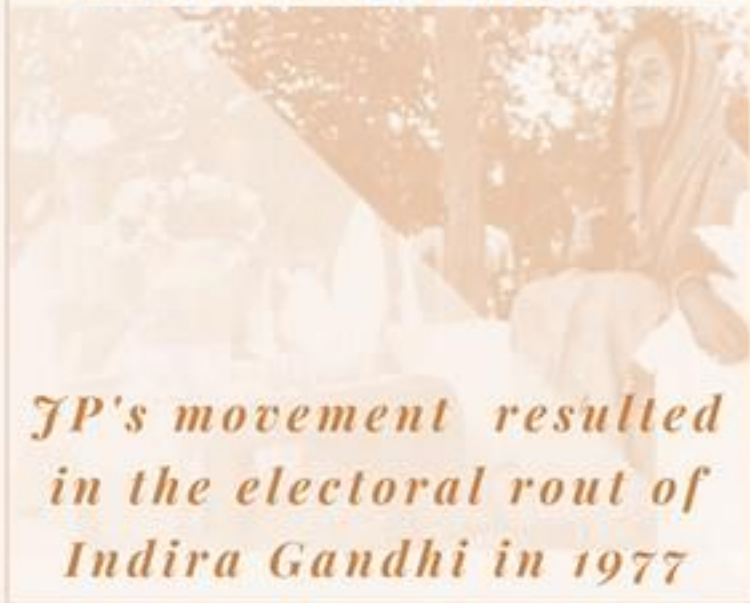
RAILWAY STRIKE



- 1 On June 5, Narayan led a massive procession through the streets of Patna. The march culminated in a meeting at the Gandhi Maidan, where JP called for a 'total revolution' to redeem the unfulfilled promises of the freedom movement.
- 2 In the meantime, George Fernandes paralysed the country with a railway strike from 8 May to 27 May 1974, bringing the movement of people and goods to a halt.
- 3 As many as a million railway men participated. Western Railways, which serviced the country's industrial hub, was worst hit.

ALL-INDIA STRUGGLE

JAYAPRAKASH NARAYAN



*JP's movement resulted
in the electoral rout of
Indira Gandhi in 1977*

1 The Bihar struggle, wrote JP, had 'acquired an all-India importance'. In August, he toured the Bihar countryside.

2 He appealed to trade unions, peasant organizations and professional bodies to come aboard.

3 On 1 November 1974, Indira Gandhi and JP Narayan had a long meeting in New Delhi. The prime minister agreed to dismiss the Bihar ministry on condition that the movement drop its demand for the dissolution of other state assemblies. The compromise was rejected.

ECONOMIC



- 1 The rate of growth of the economy was 3-4 percent.
- 2 The Green Revolution had touched less than one-tenth of the districts in rural India.
- 3 Most areas of farming were still rain-fed. Thus, despite the rise in industrial growth and agricultural production, there was still widespread destitution in the countryside.

- 4 Where irrigation was available – through dams or tube wells – farmers increased their production of both cereals and crops such as cotton, chillies and vegetables.
- 5 These aggregate improvements masked significant regional variations.
- 6 Decline in agriculture productivity because of poor monsoons.

ECONOMIC



7

There was a continuing expansion of the public sector and fresh nationalization of the private sector. Government controlled key resources like oil and coal.

8

- Oil prices increased
- Inflation hit the economy
- Low industrial growth
- High unemployment especially in rural areas
- Corruption was plaguing the economy
- War with Pakistan- Bangladesh crisis burdened the economy- refugee problem

SIMULTANEOUS DEVELOPMENTS

ATOMIC TEST



- For several years now, scientists had been pressing the government to conduct an atomic test.
- When the prime minister finally agreed, in May 1974, while the strike was on, India exploded a nuclear device.

INTEGRATION OF SIKKIM



- 1** In September, 1974, India acquired the quasi-independent territory Sikkim.
- 2** Sikkim was a very beautiful state, and also shared a border with China. Though it had its own flag and currency, it was economically and militarily dependent on India.
- 3** In 1973 some citizens of the kingdom had begun asking for a representative assembly. The Chogyal, ruler of Sikkim, asked the government of India for help in taming the rebellion.

INTEGRATION OF SIKKIM



- 4** When an assembly was proposed and elections held, the pro-India party won all but one seat.
- 5** Chogyal was forced to abdicate, and the Indian Constitution was amended to make Sikkim an 'associate state', with representation in Parliament.



JP MOVEMENT



- 1 By the end of 1974, the Bihar movement was poised to become a truly national one.
- 2 JP's movement was strongly rooted in the northern states. He had supporters in the west, in Gujarat particularly, but the south was the territory so far mostly untouched.
- 3 So, he now commenced along tour of the states south of the Vindhyas.
- 4 In Tamil Nadu people recalled that he had been against the imposition of Hindi.

TUSSLE WITH JUDICIARY



- 1** In 1973, SC heard a petition challenging a new law which gave the Parliament greater powers to amend the constitution. The government was supported by seven judges including Justice A.N.Ray.
- 2** In the meantime, the Allahabad High Court, was hearing a petition filed by Raj Narain. The petition alleged that the prime minister had won through corrupt practices, in particular by spending more money than was allowed, and by using, in her campaign, the official machinery and officials in government service.
- 3** On 19 March 1975, Indira Gandhi became the first Indian prime minister to testify in court. By the judgement, her election to Parliament was rendered null and void.
- 4** On 23 June, the Supreme Court began hearing Mrs Gandhi's petition. The next day Justice V. R. Krishna Iyer issued a conditional stay on the Allahabad judgement: the prime minister could attend Parliament, he said, but could not vote there until her appeal was fully heard and pronounced upon.

DECLARATION OF EMERGENCY

- 1 Under these circumstances, the government declared Emergency under Article 352 of the Constitution on 25th June, 1975 on the ground of internal disturbances.
- 2 On 26 June 1975, a meeting of the Union Cabinet was convened. The ministers were informed of the state of emergency, in effect since midnight. Their formal consent was obtained before Gandhi proceeded to the studios of All-India Radio (AIR) to convey the news to an equally unsuspecting nation.
- 3 She told the Sunday Times of London, 'The extra-constitutional challenge [of the JP movement] was constitutionally met.' The emergency was 'declared to save the country from disruption and collapse'; it had 'enabled us to put through the new economic programme', and led to 'a new sense of national confidence'.
- 4 Special powers granted to government.
Federal distribution of powers suspended
Government restricted Fundamental Rights
Preventive detention invoked.



EVENTS DURING EMERGENCY

1 TWENTY POINT PROGRAMME



- Within a week of the emergency, she was offering a 'Twenty Point Programme for Economic Progress'.
- This promised
 - ✓ a reduction in prices of essential commodities.
 - ✓ the speedy implementation of land reforms
 - ✓ the abolition of indebtedness and of bonded labour
 - ✓ higher wages for workers
 - ✓ lower taxes for the middle class.

EVENTS DURING EMERGENCY

2 CONSTITUTIONAL AMENDMENTS



- 1 The 38th Amendment, passed on 22 July 1975, barred judicial review of the emergency.
- 2 The 39th Amendment, introduced two weeks later, stated that the election of the prime minister could not be challenged by the Supreme Court, but only by a body constituted by Parliament.
- 3 Lawyers representing the thousands jailed under MISA argued that the right of habeas corpus could not be taken away by the state.

EVENTS DURING EMERGENCY

42nd CONSTITUTIONAL AMENDMENT ACT



42nd Amendment, Was it
India's or Indira's
Constitution?

- The clauses of 42nd Amendment, a twenty-page document, gave unprecedented powers to Parliament.
- It could now extend its own term - which it immediately did.
- The amendment gave laws passed by the legislature further immunity from judicial scrutiny, and further strengthened the powers of the centre over the states.
- The Amendment allowed Parliament unfettered power to preserve or destroy the Constitution.

EVENTS DURING EMERGENCY

3 STATES IN INDIA



1 In January 1976 the term of the DMK government ended in Tamil Nadu. Rather than call fresh elections, the centre ordered a spell of President's Rule.

2 The same rule was applied to Gujarat, where the Janata Front had lost its majority owing to defections. Mrs Gandhi, and the Congress, were now supreme all over the land.

3 An estimated 36,000 people were in jail under MISA, detained without trial. On 15 August 1975 The Times of London carried a full page advertisement taken out by the 'Free JP Campaign'. The signatories called upon Mrs Gandhi to release all political prisoners.

EVENTS DURING EMERGENCY

4 PRESS CENSORSHIP



1 As the emergency proceeded, the government tightened its hold over the dissemination of information.

2 The independent news agencies, the United News of India (UNI) and the Press Trust of India (PTI), were amalgamated with two lesser agencies into a single state-controlled news service called Samachar.

3 The Press Council, an autonomous watchdog body, was abolished.

4 A law granting immunity to journalists covering Parliament was repealed.

EVENTS DURING EMERGENCY

4 PRESS CENSORSHIP



5 As many as 253 journalists were placed under arrest.

6 The mass-circulation newspapers were hardest hit.

7 Hindi writer Fanishwarnath Renu awarded with Padma Shri and Kannada writer Shivarama Karanth, awarded with Padma Bhushan returned their awards protesting against censorship.

EVENTS DURING EMERGENCY

5 MIDDLE CLASS



The emergency was widely welcomed by the middle class.

- The crime rate had come down and the trains ran on time.
- A good monsoon in 1975 meant that prices also fell.
- The business community were especially pleased with the emergency.
- They felt parliamentary system sometimes hinders economic growth.
- Hardly any officials resigned in protest against the emergency.

EVENTS DURING EMERGENCY

6 PUBLIC PROTESTS



1 There was also resistance in the streets.

2 On 14 November 1975, the birthday of Jawaharlal Nehru, the Lok Sangharsh Samiti (People's Struggle Committee) began a satyagraha in Bombay.

3 Protesters would shout slogans such as 'Down with Dictatorship' and 'JP Zindabad'.

4 Within a month 1,359 people had been arrested – including 146 women.

EVENTS DURING EMERGENCY

6 PUBLIC PROTESTS



MANIBHEN PATEL

Daughter of Vallabhbhai Patel

5 On 15th August 1976 (Independence Day) another satyagraha commenced in Ahmedabad.

- It was led by Maniben Patel, daughter of India's first home minister, Vallabhbhai Patel. Raising slogans such as 'Remove Emergency' and 'Release Political Prisoners'.

6 Finally, there was resistance that was carried on underground. Dynamite was collected and stored, for any outbreak of riots and young men were trained in the act of blowing up bridges and railway tracks.

EVENTS DURING EMERGENCY

7 FORCED STERILIZATION



1 The debates on India's population size dated from the earliest days of Independence. The Planning Commission had spoken of the importance of family planning since its inception in 1950-1. However, culture and economics worked in favour of large families.

2 Sanjay Gandhi, son of Indira Gandhi, expressed himself in favour of compulsory sterilization, for which facilities should be provided 'right down to the village level'. In his tours around India, Sanjay Gandhi tried to ensure compliance of sterilization targets.

3 There were protests against this policy. In September 1976 an underground newspaper reported a 'wave of protests' against family planning in Delhi and Uttar Pradesh. On 18 October a scuffle broke out between officials promoting sterilization and their potential victims.

EVENTS DURING EMERGENCY

8 CONSTITUTIONAL INSTITUTIONS



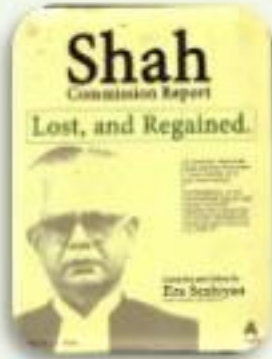
1 From the time of the Congress split, Indira Gandhi had worked to place loyal individuals in position of authority, and to make public institutions an instrument of her will.

2 Institutions such as the bureaucracy, the judiciary, and the Congress Party had been eroded well before the emergency.

3 On 18 January 1977, the prime minister announced that Parliament was to be dissolved and fresh elections held. Some felt that it was the consequence of competitive one-upmanship. President Bhutto had just announced elections in his usually autocratic Pakistan. This prompted Indira Gandhi to showcase her power as well.

4 People felt how the dictatorship imposed by India's third prime minister was so much at odds with the democratic legacy of her father.

DEBATES PERTAINING TO EMERGENCY



- Shah Commission founded out the excesses that were committed during Emergency.
- The Janata Party appointed it in May 1977 to inquire into the allegations of abuse of authorities and malpractices committed.

SOME OF THE DEBATES ARE:

- Reason for proclaiming Emergency- Internal disturbances. Supporters- parliamentary politics targeting government leads to instability.
- Focus gets on maintenance of law and order. Indira Gandhi complained about the subversive forces trying to obstruct the progressive programs of government; unity of India was affecting the government.
- Opponents- Opposition parties must be allowed to voice their opinion and educate people about the wrongdoings of government.
- Moreover the agitations were peaceful and non-violent.
- The Home Ministry also never expressed any concern about the law and order situation.

SOME OF THE DEBATES ARE:

The problem lied with the implementation of Emergency –

- During emergency, government implemented a twenty-point program including
 - ✓ Land reforms
 - ✓ Land redistribution and
 - ✓ Eradication of bonded labour etc.

CRITICS ... COMMENTS!



- Critics - government promises remained unfulfilled.
- Preventive detention could have been avoided.
- Press Censorship was unreasonable.
- Forced sterilizations in Delhi was controversial.
- There were large cases of custodial deaths and torture.

OBSERVATIONS ABOUT EMERGENCY



- 1** Democracy is rooted within the social and political fabric of India. In spite of Emergency, democracy was restored very soon.
- 2** A need was felt to clarify the Constitutional provision pertaining to Emergency. Internal Emergency could only mean 'armed rebellion', and had to be proclaimed by the Union Cabinet in writing.
- 3** The value of civil liberty was realized. Judiciary had also worked proactively to protect civil liberties.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

0866 244 44 72

98499 42299

94415 27588